

Development and Peace Through Traditional, Cultural, Islamic Mediation

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journals.sagepub.com/home/jpd**Jonathan K. Zartman** 

Air University, Montgomery, AL, USA

Abstract

In a world filled with conflict, competition, and war, those who work for peace shape the character of human existence at the local level. The lives and petitions of individuals who work to reduce the ravages of conflict create profound effects and deserve attention and study. In the last two decades of international politics, violence in Islamic societies in Afghanistan, Iraq, Somalia, Sudan, and elsewhere has gained global public attention. However, the international media frequently does see the local-level initiatives to promote peace in traditional Islamic societies. Many people, whether in humanitarian nongovernmental organisation operations, or as part of a military-led reconstruction team, have worked and poured treasure into promoting stability in traditional societies suffering from insecurity. Understanding the resources for peace offered in Islam and the way in which Muslims work for peace in their communities can empower those who seek to help and protect them from strategic errors.

Keywords

local, traditional, cultural, Islamic mediation, conciliation, reputation, conflict resolution, character

Seeking Peace at the Local Level

Given the ubiquity of quarrels and competition, traditional societies develop practices and procedures for dispute resolution. When outside parties enter, they become part of the dynamic of local relations. Offenses by foreigners come easily, but their efforts to resolve problems in ways that work in their home societies do not work as well in a traditional Muslim society. Therefore, whether seeking to make amends for an offence, or pursuing peace for the sake of aiding development, everyone who works in a Muslim society should become familiar with the local traditions of conflict resolution.

This work does not offer a theoretical analysis but rather seeks to extend awareness, and offer examples applying the work of Funk (2014), Abu-Nimer (2014), Irani & Funk (2001), and Funk & Said

Corresponding Author:

Jonathan K. Zartman, Air University, 2730 Windsor Avenue, Montgomery, AL 36109, USA.

Email: jkzartman@yahoo.com

(2009). It promotes three major applications for the outsider seeking to support local conflict mediation: (1) develop cultural awareness; (2) develop respect for Muslims; and (3) in each place, ask the questions, "What rituals do people here use to resolve conflicts?" and "Who has a reputation for mediating conflicts?" Discussion of seeking peace in the broad area of Muslim majority societies, encompassing about 57 countries, with many different languages, civilizations, and different doctrines and divisions, such as Sunni, Shi'a, Ibadi, and Sufism, necessarily includes a great diversity of practices. The examples offered here, ranging from Afghanistan to Jordan, Morocco, Somaliland, Tajikistan and Turkey, represent an effort to show the value of similar principles and practices across a wide range of societies, despite other aspects of social differences.

Local-level conflict resolution deserves attention for several crucial reasons. Local conditions represent the core life experiences for Muslims in a traditional society. The principles of Islamic mediation have great impact at the local level, so a stronger understanding of these principles can help both Muslims and non-Muslims enhance human dignity and well-being. As Hayman (2013) concludes from a review of peacebuilding, "Locally-led peacebuilding offers advantages over internationally-led initiatives for fostering self-help, relevance and sustainability" (p. 17). She notes that international organisations lack awareness of the importance of local capacity to mediate conflict (Hayman, 2013:21). She concludes that only locally rooted, relevant endeavours hold the durable commitment of the people who need help. Kalyvas (2003) has given a plethora of examples to document how local conflicts, teeming with bitterness and desires for revenge, frequently animate and become intermingled with larger political projects, issues of ethnic conflict, and civil wars. Given the significance of local conflicts for the people involved, for those who seek greater human welfare in Muslim societies, and for security and stability at the regional level, local practices of mediation and conflict resolution carry great importance today. This article uses the word "local" to mean that particular place where someone wants to promote peace, whether they work for a non-governmental organisation (NGO) in aid, relief and development, healthcare, or even providing security assistance to the government.

In the context of traditional Muslim societies, local traditions of mediation and conflict resolution vary in their terminology, the content of rituals for reconciliation, preferences for mediation by a single individual or a group, and the methods of enforcing decisions. Although mediators draw guidance and inspiration from a common treasury of examples and doctrine, their application of Islamic principles characteristically bears the distinctive imprint of local custom. This word "traditional" describes a society in which people use the values and rituals they learned from their fathers and grandfathers. These societies emphasise relationships and community, in contrast to the individualistic, task orientation common in the West. As Funk (2014) explains it, "The forms of conflict mediation presented here seek, not merely peace as the absence of conflict, but more importantly "restorative justice," meaning the reintegration of the offender back into the community, after accepting responsibility, and making reparations, in a public ritual that allows all sides to recover their dignity, thereby preventing cycles of retribution."

Despite the patriarchy commonly found in Muslim societies, women of dynamic intellect and distinctive personality, like the famous woman Sufi, Rabi'a of Basra, do influence their societies (Keddie, 1987; Schimmel, 1982). Kadiyifci-Orellana and Sharify-Funk (2010) have written very persuasively on the role of Muslim women in peacebuilding. USAID (2011) has publicised how networks of older women use Islamic law and local custom to resolve family level disputes).

Gang (2012), in reporting on dispute resolution in Balkh Province of Afghanistan, notes:

Disputes among women are usually handled by the oldest woman in the family, or through the *jalasa* [community meeting] of the white-bearded men. The work of NGOs and the expansion of the central government has resulted in the *Khadim* [older woman appointed as liaison to other women] becoming more of a women's community leader, taking "the lead in microcredit group arrangements and [as] the coordinator for women's livelihood and development activities within the village."

However, in the context of traditional societies like Afghanistan, men play the dominant role in society, and the customs of patriarchy exercise a strong hold over popular sentiment (Irani, 1999). In discussing the fact that women have to get permission from their husbands for everything, Gang notes, "Women's subordinate status is not solely a product of community norms in the research sites, but rather is consistent with prevailing gender roles and relations in Afghanistan more generally" (p. 22). The older men normally solve conflicts within a family, and when larger scale conflicts arise, people chose older men as mediators, who hold a reputation for piety, honour, interpersonal skills, and knowledge of local history, customs, and traditions (p. 19).

The effectiveness of traditional methods of mediation and conciliation in Muslim societies raises the questions, "From what sources did these practices develop? On what foundations do mediators base their work?" Traditional conflict mediation in Muslim societies rests on the example of the Prophet Muhammad, on many verses in the Qur'an, and on historical examples of noble individuals. Moussalli (2001) notes that this derives from a principle of Islamic practice: "For most Muslims, be they modernists, fundamentalists or traditionalists, the introduction or development of theoretical principles or practical doctrines cannot be abstractly justified, but must be referred directly or analogically to past 'authentic' principles and doctrines" (p. 144).

Roots of Peace in the Example of the Prophet

Ahmad Moussalli describes historical Islamic principles of arbitration, or *tahkim*, as rooted in traditional Arab practices, and exemplified in the personal example of the Prophet (p. 145). Historically, "each tribe had its own arbitrators who were known for their good judgment and knowledge of tribal customs and were also respected for their justice, fairness, and superior moral qualities. Some arbitrators were women" (Moussalli 2001: 145). He observes that in pre-Islamic history, "arbitrators were not necessarily tribal chiefs, but men of understanding who had knowledge of traditions and customs, so even some Christian priests played the role of arbitrators in pre-Islamic Arabia, though not in their capacities as men of religion" (p. 146). Therefore, he argues that this tradition of arbitration forms the cultural context in which the Prophet Muhammad built his reputation as a man who sought peace. Moussalli records that, "Before his prophethood, Muhammad became known as an honest arbitrator" (p. 148). Furthermore, Muhammad did not just judge between Muslims, but he also applied Jewish law for offenses within the Jewish community. Although Moussalli uses the term "arbitration," today this term carries a connotation of greater formality, in which the arbitrator holds legal authority to impose a judgement in the dispute. In contrast, most of the following examples represent mediation, in which the process is open, more informal, and seeks to restore peaceful relations within a community, a practice of conciliation and "restorative justice."

Mohammed Abu-Nimer provides a strong argument tracing the roots of peacebuilding to the example of the Prophet during the 13 years of nonviolent struggle and resistance.

During the Meccan period of the Prophet's life (610-622 C. E.) he showed no inclination to use force in any form, even for self-defence. Instead, he waged nonviolent campaigns of resistance, through all his teachings in that period, during which the Muslims were a minority. [...] During this time, though he was tortured, accused of blasphemy, and humiliated, and his family and supporters were ostracized, he neither cursed his enemies nor encouraged violence. (Abu-Nimer, 2003, p. 63)

The conditions under which the community moved from Mecca to Medina provide more instruction on principles of mediation. Funk and Said (2009) note that, "the contending tribes of Yathrib (future Medina) invited him Muhammad to migrate to their city and arbitrate their many conflicts" (p. 79). Under the Constitution of Medina, both Jews and Arabs became collective citizens of the new political community.

Understanding Islamic doctrines regarding peacebuilding requires recognising exceptions to the stereotype that the verses of the Quran given during the Muslims' sojourn in Medina promote violence and conflict. In Medina, the Muslims did fight battles, but Muslims argue that this does not mean the verses of the Qur'an dating to the Medina period lack support for peacebuilding. In addition to the cultural heritage of Arab arbitration, and the example of the prophet, Islamic peacebuilding rests on a doctrine regarding the acceptance of diversity. Hashmi (2001) argues that "[Instead] of steadily moving toward an attitude of war with other religious communities, the Medinan chapters contain many injunctions on toleration, including the most significant verse on this topic: 'Let there be no compulsion in religion; truth stands out clear from error'" (p. 116).

Peacemaking in Islam rests on the virtues, habits of character, and temperament necessary for overcoming differences, and the bitterness created in conflict (Thistlethwaite & Stassen, 2008). In the absence of patience and humility, offenses arise easily. The Muslim who seeks peace finds the roots of every good and necessary virtue in the guidance of the Qur'an. For example, Abu-Nimer (2010) notes the roots of conflict resolution in Qur'an 16:90: "Repel evil [not with evil] but with something better (*ahsan*)—that is, with forgiveness and amnesty" (p. 82). The mediator must also have a reputation for humility. He furthermore cites the Qur'an 5:2 to say that Muslims should not be involved in violence at all and should settle conflicts peacefully (Abu Nimer, 2010, p. 83). This leads him to describe the importance of mediators, intervening in disputes to prevent a spiral of escalating violence: "when a third party is part of a peacebuilding intervention, it is mainly to facilitate communication, reduce tension, and assist in rebuilding relationships" (Abu Nimer, 2010, p. 83). All of this follows strong instruction in the Qur'an for mediation:

And if two factions among the believers should fight, then make settlement between the two. But if one of them oppresses the other, then fight against the one that oppresses until it returns to the ordinance of Allah. And if it returns, then make settlement between them in justice and act justly. Indeed, Allah loves those who act justly. The believers are but brothers, so make settlement between your brothers. And fear Allah that you may receive mercy. (*Sahih International* translation of Qur'an 49:9, 10)

In addition to the Qur'an, Muslims also trace the foundations of peacebuilding to specific *hadith*, meaning reports or traditions regarding the Prophet (Thistlethwaite & Stassen, 2008).

What if the local peacemaker, or group of "white beards" who mediate conflicts, lacks the education and level of knowledge to access all the treasury of peacebuilding skills and ideas available in Islam? By their character and sense of duty, people who desire peace tend to seek the knowledge and resources to reconcile opponents. They seek to garner wisdom from local experience, to gain credibility and charisma. In a traditional Muslim society, mediators with a reputation for humility, honour, and piety will draw inspiration and knowledge from local history and traditions, as well as the Qur'an, *hadith*, and the *Sunnah* (the path or example of the Prophet). They work to develop their reputation as an "honest broker" for people involved in a dispute.

Peacebuilding in Islam rests on a rich heritage of examples and doctrine.

Peacebuilding in Islam rests on a rich heritage of examples and doctrine. Islam also promotes some character traits that strongly support peacebuilding. Therefore, the development NGO worker, or

medical technician who wants to build cooperation and overcome grievances should devote attention to forming good relations with, and seeking the advice of men with a reputation for good character, and a history of mediating local conflicts. People in most local Muslim communities can point to a specific man or group of men that they trust to resolve conflicts.

Historical Examples of Seeking Peace in Islam

Funk and Said (2009) note examples in the historical literature of individual Muslims who have sought peace at great personal risk:

Moroccans, for example, have long recited narratives of Lala Aziza, a courageous and deeply spiritual Muslim woman of the fourteenth century who reconciled conflicting tribal groups and on one occasion persuaded the governor of Marrakesh to desist from his acts of military aggression against the people of her region. (p. 185)

Given the historical record of Muslims with courageous convictions in seeking peace, one might well ask whether these people represent only rare treasures of nobility in a long-lost previous age. However, recent history also offers striking cases of individuals dramatically changing their societies through their commitment to making peace. Abu Nimer (2014) notes that, "Pursuit of peace in Islam is based on justice and nonviolence" (p. 376). For instance, Abdul Ghaffar Khan, a Pashtun in present-day Pakistan, worked with Mahatma Gandhi in seeking independence from Great Britain. His motivation derived distinctively from the example of the Prophet Muhammad. Although he lacks the international fame of Gandhi, he pursued a similar path with tremendous vigour, persistence and sacrifice. Harris (2001) quotes Khan's explanation of why he chose the path of nonviolence:

But in jail I had nothing to do except read the Qur'an. I read about the Prophet Muhammad in Mecca, about his patience, his suffering, his dedication. I had read it all before, as a child, but now I read it in the light of what I was hearing all around me about Gandhiji's struggle against the British Raj. (p. 234)

Abu-Nimer quotes Khan saying, "I am going to give you such a weapon that the police and the army will not be able to stand against it," he told them. "It is the weapon of the Prophet, but you are not aware of it. That weapon is patience and righteousness. No power on earth can stand against it" (Abu-Nimer, n.d.). Khan's commitment to bringing Islam into practical life through good works motivated a relentless drive to promote hygiene, education, skills, and freedom from foreign oppression through nonviolent resistance. "It is my inmost conviction that Islam is *amal*, *yakeen*, *muhabat* [work, faith, and love] and without these the name 'Muslim' is sounding brass and tinkling cymbal" (Easaran, 1999, p. 63). His example shows the interdependence of development and peacebuilding.

Bediuzzaman Said Nursi, a Sufi and a highly educated scholar of Islam in Turkey, represents another relatively recent example of a man who pursued peace. Zeki Saritoprak calls Nursi the "Gandhi of the Turks." In the context of the World War I fighting between Turks and Russians, Turks regarded the orthodox Christian Armenians as a potential fifth column of disloyal agents. Conflict and fighting arose between Turks and Armenians. Saritoprak (2010) claims that, "In response to Nursi's peace-making behaviour toward Armenian children, the Armenians chose not to kill Muslim children" (p. 97). He notes that Nursi based his nonviolent doctrine on the Qur'an 16:125, "Call to the way of your Lord with wisdom and beautiful discourse and debate with them in the best way" (p. 99). He also

reports that Nursi gained a reputation for an article in which he wrote that, “Hatred should only be directed to ignorance, poverty and hypocrisy” (Saritoprak, 2010, p. 101). His example further reinforces how those who promote social peace enable human development.

The stories of Abdul Ghaffar Khan and Bediuzzaman Said Nursi illustrate peacebuilders who drew inspiration from the example of the Prophet and the words of the Qur’an. For those who may have no impression of Islam, except what they have heard from news reports of violence, the foundations of peacebuilding in Islam represent a welcome surprise and a source of new insight which deserves understanding and awareness.

Character and Reputation

In the documentary *Afghan Stories*, a young Tajik man named Walied Osman visits Faisabad, where he has the great fortune of being the guest of Hajji Ahmed Shamsiddin, a town elder. Osman describes him as one of the most revered men in Faisabad. “You know when you are in the presence of a great man. He has presence. He has energy. There is an aura about him” (*Afghan Stories*, 2003). The director, Taran Davies, describes Shamsiddin as renowned for his work during the Soviet occupation of Afghanistan, as the region’s most recognised peacemaker. Shamsiddin describes his work in interceding for the protection of Faisabad from the Mujahidin that wanted to expel the Russians who controlled the city.

When the city was in the hands of the Russians, I used to go to the commander of the mujahidin and asked him not to fire at the city. I told him, ‘Don’t kill human beings, don’t destroy humanity.’ We protected our city. Praise God, the people still feel the same way and want peace. (*Afghan Stories*, 2003)

The “presence” that Osman describes derives from Shamsiddin’s character and reputation. Huda (2010) notes that in the Islamic context, this derives from piety and devotion:

Historically, theologians stress the need for personal transformation and striving toward elevating spiritual awareness through fasting, prayer, charity, meditation, rituals, Qur’anic recitation, service, love of others, adoption of orphans and displaying compassion and forgiveness to oneself and to others who have done harm. (p. xviii)

One of the early classics of social anthropology, *Saints of the Atlas* by Ernest Gellner, gave explicit recognition to the role of leaders and teachers in Sufi orders as mediators. Gellner (1969) studied a group of “professionally neutral, obligatorily pacific, saints-arbitrators” (p. 34). Gellner observed that the society he studied had been stable for 300 years under the social system in which people went to the local saint for mediation of their disputes (p. 278). These saints had set up lodges in places where the borders of two or more tribes would meet. They built their most important lodges in places of previous conflicts, such as the point on the route used by nomadic groups as they would bring their herds across the territory of farmers in highland areas. Gellner explained the role of these mediators in very functional terms. He noted that the mediators had to render rulings in accordance with the local norms and customs, rather than strictly according to the standards of Sharia, or they would lose their status (p. 149).

Variation in Local Practices and the Power of Symbolism

Even though a broad variety of societies make the foundations of Islam the guiding principles of social life, different Islamic cultures demonstrate a great deal of variation in customs for conflict resolution. Therefore, Abu-Nimer (2001) argues,

Scholars and practitioners should be aware of, investigate, and understand the existing procedures of conflict resolution which have been implemented in the local community. In the Middle East, adopting such a perspective means the acceptance and recognition of the proposition that Islam and Islamic societies contain beliefs, customs, attitudes, and a history which can serve as rich bases for identifying constructive conflict resolution frameworks and processes (pp. 124, 125).

In contrast to conflict mediation in a Western context, practiced by the paid, professionally trained expert in legal procedures, a mediator using traditional practices in the Middle East needs primarily credibility and access. People choose their mediators based on age, political and military power, religious affiliation, and knowledge of local history, social norms, and values. Therefore, local traditional authority figures have advantages in managing conflict at the village and regional level rather than politicians who focus on gaining political power (Funk & Said, 2009, p. 174).

A comparison of traditions of the area that includes Syria, Lebanon, and Jordan, with practices of Afghanistan, illustrates the variation in local practices. George Irani and Nathan Funk examine the process of reconciliation after the commission of a crime and consider these practices as a pattern that should be applied to larger conflicts. "Rituals such as *sulh* (settlement) and *musalaha* (reconciliation) exemplify key Arab-Islamic cultural values, and should be looked at—both figuratively and to some extent literally—for insight into how to approach conflict resolution in the Middle East" (Irani & Funk, 2001, p. 171). This pattern emphasises the importance of restoring offenders to relations with the community and building up the honour and reputation of the victims. They note that, "In Islamic law, *sulh* is a form of contract ('*akd*), legally binding on both the individual and community levels" (p. 33). Therefore, the process involves the larger community, and people give great attention to symbolic actions.

For example, after a man commits a crime, he knows that victims will seek retribution against him and his family. If the offender wants to prevent his own death, or the death of a brother, son, or father, he must call on a delegation of mediators—comprised of village elders and notables, usually called *muslihs* or *jaha* (those who have gained the esteem of the community)—to request a truce and negotiate the payment of some recompense for his offence (Irani, 1999). The *jaha* play a crucial role in facilitating "acknowledgement, apology, compensation, forgiveness and reconciliation" (Irani & Funk, 2001, p. 19). After the period of mourning and the presentation of the *diya* or blood money, having reached an agreement, the families gather for the ritual shaking of hands. The offender and his family must visit the family of the victim and drink the bitter coffee that they serve. Then, "The family of the offender serves a meal to the family of the victim. This breaking of bread together, referred to as *mumalaha*, completes the ritual of reconciliation" (Irani & Funk, 2001, p. 187).

The presentation of the blood money carries much greater symbolic weight than the actual amount of money (Funk & Said, 2009, p. 59). In some cases, the family of the victim refuses the money, to signify their nobility in forgiving without it (Funk & Said, 2009, p. 151). Qamar-ul Huda emphasises the importance of sincerity, and a continuing effort to heal the breach in relations created by crime:

Compensation is not only measured in financial terms, however; it also involves service to the family or community and specific gestures of grief relief. For instance, *ta'lif al-qulub*, or offering to the heart, is a legally recognised practice of reconciliation, by which the offender periodically visits the victim's family to demonstrate remorse. (p. xix)

These open public rituals give great significance to symbolic actions. Similar priorities and issues play out in cases of conflict mediation in a Tajik-speaking area of northern Afghanistan. The United States has been forced to pay attention to local level disputes because anger at government corruption leads to conflict that undermines security. Gang (2012) reports that villagers actively shop for the forum in which they believe they will gain the best justice at the lowest cost, with the greatest security that a resolved

problem will not spring up again in the future (p. 32). At the village level, people resolve disputes in the *jalasa*, or “community meeting,” which can be arranged specifically for a particular dispute. Commonly the elders, men with white beards, would meet after Friday noon prayers at the mosque (p. 18). She notes that the ideal outcomes in small disputes are rooted in principles of *islah*,

A process that uses mediation, negotiation and compromise to restore social cohesion in the community, thereby preserving the peace, unity and reputation of the village [. . .] Resolution principles that flow from *islah* include *solh konan* (to make peace); *uzr* (apology), in which white beards encourage the wrongful party to apologize in person and, commonly, to present a goat or a sheep to the aggrieved party; *ebra* (forgiveness), in which the aggrieved are expected to forgive those who genuinely offer *uzr*; and *ashty*, in which the white beards encourage the disputants to seal their forgiveness for one another with physical gestures of affection and celebration once a dispute has been resolved. (p. 33)

Throughout Afghanistan and Pakistan where the Pashtuns live, they have a strong reputation for employing collective dispute resolution. In addition to their devotion to Islam, Pashtuns follow an honour code that governs social relations and behaviour called the *Pashtunwali*. This honour code sometimes leads to conflict with Sharia and sometimes conflicts with the official laws of the government of Afghanistan. The honour code gives a balanced importance to competing values such as the necessity of revenge (*badal*) to preserve honour and the obligation to forgive (*nanawati*) when your enemy begs for forgiveness. Nevertheless, it holds great power as the legitimate guide to behaviour for Pashtuns. Ali Wardak notes that over the centuries of living next to each other, the different ethnic and tribal groups have emulated each other’s behaviour. He observes that, due to the presence and experience of Pashtuns in conflict situations, “it was not uncommon for non-Pashtun groups to request local Pashtun elders hold a *jirga* to settle a non-Pashtun conflict” (Wardak, 2003, p. 5). He describes the operation of collective conflict management at several levels of social hierarchy.

At the local village level, Pashtuns use the term *maraka* for the gathering of older, respected elders and other authorities called *marakachian*. These include the *mashran* (elders), *speengiri* (people with grey beards), and *speenpatkian* (people with white turbans, which means mullahs; Wardak, 2003, p. 8). These mediators employ different rituals of reconciliation or mediation in minor cases versus criminal cases. Wardak describes the gathering as two circles, an inner circle of mediators and an outer circle in which all the people of the village observe what is going on. This creates a broad spectrum of communication that reinforces the social cohesion of the village as a community with a shared morality. “It also ensures that the violator must pay the price for his/her violation, so that the actual harm inflicted (on the victim) and the symbolic damage caused to the moral order of the village are compensated” (Wardak, 2003, p. 9).

In Wardak’s description, the mediators employ heavy persuasion to get all of the parties to agree to the decision. Wardak puts the weight of success or failure of a *maraka* on the character of the men sitting in the circle deciding and administering justice. “It is mainly the ‘traditional authority’ (based on personal qualities, social status, and leadership skills) of the *marakachian*, which plays a central part in achieving a *prikra* [binding decision] that is satisfactory to both parties” (Wardak, 2003, p. 9). In his description, a *jirga* works like a *maraka*, but at this higher, tribal level, the inner circle consists of more prominent representatives of important families, men with a reputation for hospitality, bravery in battle, honour, verbal eloquence, sound judgement, and political influence with the government (p. 10). The *jirga* can meet for several days at a time, until a decision is reached by consensus. If the *jirga* breaks down, “the tribal leaders reassert their authority and the *jirga* is reconvened” (p. 11).

Sometimes the *jirga* decides that the family of the offender must send a *nanawati* delegation to the victim’s house to seek forgiveness and pardon. “This consists of a group of people that include *speengiri*, *torsary* (female relatives of the offender holding a Qur’an), and *speenpatkian*, alongside the offender’s close relatives (and sometimes the offender himself) who brings a sheep and flour to the victim’s house.

The sheep is slaughtered at the door of the victim's house" (p. 12). As a result of the pardon from the victim's family, the tribe accepts the offender back into the tribe and treats him with respect.

Application

These traditional practices of conflict management might seem unusual to the foreigner, but they hold a crucial cultural importance for the people involved. When U.S. forces operating in Afghanistan kill noncombatants, their procedures for dealing with the consequences need to conform to local custom. Families of the victims carry the obligation for revenge under *Pashtunwali*. If one particular unit of U.S. forces fails to acknowledge and accept responsibility, the local people have little capacity for singling out the precise unit, or person responsible, on whom they must enact revenge. According to reports, the United States has understood the duty of paying blood money, but the actual practice has been perceived as perfunctory rather than demonstrating contrition.¹ As such, the victim's families do not feel respected, or their humanity and their losses properly acknowledged.

A contrasting case can be seen in the record of a Provincial Reconstruction Team (PRT) commander who took the issue of local culture seriously and researched *Pashtunwali* deeply before deploying. In Nangarhar Province, in 2006, the PRT commander discovered that a significant number of improvised explosive devices were being directed at the Marines that operated in the area. The commander, LTC Lynda Granfield, held many *shuras* with the provincial and district governors to discover the root of local grievances, due to some heavy-handed Marine tactics suffered previously by the people. Based on her understanding of *Pashtunwali*, she requested a *nanawati* ceremony with the local Pashtuns (personal communication, Col Lynda Granfield, March 5, 2013). Her PRT gained a great deal of high-level political commitment for the effort. The PRT and the Marine Battalion Commander conducted two *nanawati* ceremonies in different districts. As an illustration of this political commitment, the first ceremony included the Deputy Provincial Governor, Provincial Council Chairman, Chief Provincial Prosecutor, District Governor, Afghan National Army Corps Commander, Provincial Chief of the Afghan National Police, and District National Directorate of Security (Intelligence Service) Director.

Approximately 200 elders attended the first ceremony, and more than 400 attended the second ceremony, which included the Provincial Governor Gul Agha Sherzai. The elders in both districts said that this was the first time that any foreigner had paid any respect to their customs under *Pashtunwali*. The frequency of improvised explosive device attacks did diminish—until another offensive incident provoked renewed antagonism. Nevertheless, many other benefits—in terms of improved cooperation and communication—resulted from these efforts.

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Just as understanding local culture can lead to appropriate behaviour and managing conflicts at the personal level, similar benefits derive from applying an understanding of traditions and principles of Islamic peacebuilding in larger conflicts. The contrast between conditions between the internationally recognised state of Somalia versus the unrecognized—stable and increasingly prosperous—region

of Somaliland, provides a striking illustration of the value of traditional Islamic conflict resolution methods (Ali et al., 2008).

Federico Battered notes that Somaliland represents a strikingly significant example of local peacebuilding initiatives, with very little external help. "This result has been mainly the effect of recourse to local mechanisms of conciliation" (Battered, 2003, p. 228). He credits not only the formal role of elders and prominent chiefs but also the personal ability of President Igal, and the commitment of the Somaliland

people to peace. In the context dominated by the military power of competing warlords, “Somaliland is in fact a remarkable example of the supremacy of civil power” (p. 235). In the words of Ibrahim and Terlinden (2010), Somaliland represents “home grown” peacemaking. “Somaliland achieved its cessation of hostilities and also longer-term stability through a series of no less than thirty-eight clan-based peace and reconciliation conferences and meetings between 1990 and 1997.” Ibrahim and Terlinden credit success to the fact that the local communities paid the expenses of the meetings, key figures participated voluntarily, and they adopted resolutions by consensus.

A key assessment of this success notes the role of the Somali traditional code of conduct (called *Xeer*, similar to the role of *Pashtunwali*) which combines both Islamic Sharia and customary law. Councils and juries of elders guided the discussion in meetings, which included a broad cross section of society. Ali et al. (2008) note that community leaders, intellectuals, poets, business people, politicians, military officers, religious men, and also women participated in the meetings, although “tradition did not permit their direct participation in the decision-making process” (p. 86). Women supported the meeting in arranging venues, preparing meals, even selling their jewellery to pay for expenses. Women connected by marriage to other clans served as trusted couriers of information between competing clans. Ali, Mohammed, and Walls argue that the peace meetings emphasised the importance of forgetting grievances and starting fresh, the local nature of the process, the crucial role of the elders, and the personal commitment to peace by the prominent mediators (p. 89). In sum, Somaliland stands as a testament to the power of reconciliation using local initiative, traditional Islamic principles, and respect for the elders as men of peace.

Another important case that illustrates the traditions and principles of Islamic peacebuilding in larger conflicts can be found in the resolution of the Tajik Civil War. In this peace process, a form of “Track 2” diplomacy played a crucial role in enabling the government and the diverse opposition coalition to reach a settlement. In this civil war, an entrenched, oppressive government of former Communist Party officials faced four different opposition groups. The Pamiris predominantly wanted freedom to be left alone, as expressed in secessionist demands for the mountainous Badakhshan region. As Ismaili Muslims, the Pamiris had faced discrimination—many lived in severe poverty—but the Pamiri people also had many high-level intellectuals. Another segment of society phrased their demands primarily in terms of democracy, but many of their leaders fled to Moscow when active fighting started. A third group expressed their demands primarily in terms of Tajik national identity as Persian speakers. Many of their leaders went to Iran in the face of deteriorating security. Finally, a fourth group demanded freedom of religion, and many of their leaders escaped to the mountains, or to Afghanistan. This created a challenge in terms of getting the opposition to define a negotiating platform and select representatives for the negotiations.

Although the government had rebranded itself in populist and nationalist terms, it lacked legitimacy in the eyes of the people, who had suffered pressure and discrimination for their faith under Communist rule. In the course of the conflict, conservative estimates say that 60,000 people died and 600,000 people fled their homes. Although many people escaped to other parts of Tajikistan, large numbers went to Afghanistan, Iran, Russia, and other parts of Central Asia. The heartache, grief, and losses created great barriers to mediating this conflict.

The United Nations and a group of interested states worked hard to encourage the government and the opposition to negotiate a political power-sharing agreement. However, even before the start of the Tajik Civil War, Russian and American sponsors began the Tajik Dialogue process by seeking Tajiks willing to meet together, several times a year, for up to 2 weeks at a time, to discuss rising tensions and conflict in the country (Saunders, 1999, p. 155). Many of those selected for participation genuinely sought peace with humility, out of love for their neighbours. Those who participated noticed that their thinking, and even values, began to change as a result of their interaction. Many went on to establish NGOs that operated on the principle of active dialogue.

Funk and Aziz (2009) offer a stirring advocacy of sustained dialogue as a means by which people can process and overcome the powerful emotions created in war: "Only active engagement through sustained dialogue can help us transcend the fear, anger, and insecurity that foster conflict escalation and discover the common humanity that these emotions conceal" (p. 43). The informal peace process in Tajikistan sought to achieve these very goals. Furthermore, members of the sustained dialogue process repeatedly provided crucial information and suggestions to the members of the formal negotiating teams.

International organisations and foreign states prefer to sponsor formal political negotiations, and they only invite men supported by an armed force in the field. The agreements that they reach deal mostly with issues of power-sharing from a rational-instrumental perspective. The agreements tend to lack enforceable provisions for accountability to the public, political pluralism, support for minorities, and protections of rights and procedures for peaceful change. The content of the *General Agreement of Peace and Reconciliation in Tajikistan*, signed by the contending parties as a result of the formal UN-mediated negotiations, strengthened institutional support for centralised state control, excluded competing political parties, and reduced pluralism and participation. In contrast, a sustained dialogue process seeks the maximum involvement and participation of society at the local level.

Harold H. Saunders, one of the organisers of the dialogue, advocated a "public peace process" that emphasized the agency or activity of citizens, ideally interacting on many levels, outside of government, separate from formal mediation or negotiations by governments (p. 78). Mullojanov (2001) notes that whilst the formal agreement resulted from the negotiations amongst official decision-makers, there was also an "Agreement on Social Accord in Tajikistan," signed on March 9, 1996, by 66 political parties and organizations, which established "The Public Council of the Republic of Tajikistan."

Given the weaknesses and limitations of the formal *General Agreement*, the credit for any peace in Tajikistan must go to the large, resilient civil society developed by those who participated in the Sustained Dialogue programme. Mullojanov (2001) claims that "Civic groups have also shouldered the responsibility of implementing conflict resolution, dialogue and education programmes. Their initiatives are gradually changing the political, social and even psychological atmosphere in the country." In summarising the contributions and observations of Abdullo Rashid, Mullojanov, and others who recorded the consequences of the Sustained Dialogue, Abdullaev and Barnes (2001) conclude, "Thus the Dialogue provided a unique bridge between the official process and civil society and complemented the more overtly political approaches to ending the war." Public associations worked to reduce tensions and hardships. Activists sought to improve conditions for people struggling with a difficult institutional environment through extensive development of roundtables and dialogues for peacebuilding, just like the *jalosas* of Northern Afghanistan, the *jirgas* of Pashtun areas, and the *shuras* of clan elders in Somaliland. Some of the people that have most actively contributed to peacebuilding were not dialogue participants, but from only limited contact with participants found the confirmation of their own ideas, and the support and impetus to embark on their own programmes.

For example, Abdughani Mamadnazarov, the director of the Association of Young Political Scientists, reinforced peace by providing opportunities for many people to participate in solving problems associated with politics and society. He promoted organizations that provide conditions for discussion. As of June 2001, the association had organised scores of public roundtable discussions and more than 30 continuing political discussion clubs. These efforts included the participation of all districts or regions—sometimes as many as five at a time and often more than three. Symbolism plays a big role in this work. Mamadazimov repeatedly organised caravans to gather roundtable participants from all parts of the republic. In one programme, he asked participants from every region to bring some of the local potter's clay. When the whole group had gathered, the organisers mixed all the samples of different clay collected from each region of Tajikistan and moulded it into a ceramic vase, to symbolise the unity of Tajikistan.

In sum, in Tajikistan, the supportive social and cultural environment for peacebuilding developed largely through local initiatives, with a spark from the Sustained Dialogue (Lederach, 1997). Because of the Sustained Dialogue process, conflict resolution in Tajikistan ultimately represented the struggle of traditional Islamic and national values. This reflects the arguments of Funk and Said (2009) regarding seeking peace through local, traditional culture: “Islamic approaches to conflict resolution draw on religious values, social networks, rituals of reconciliation, and historical practices of communal and inter-communal coexistence” (p. 173). Therefore, they conclude: “The starting point for any intercultural peacebuilding effort is the development of religious and cultural literacy” (p. 269). In other words, efforts to support development and building peace in a traditional Muslim society can benefit from learning about the local culture and the principles of conflict management in Islam.

Conclusion

The popular consciousness of Western audiences has little awareness of the activity of those who work for peace in a traditional Islamic society. Negative media portrayals of Muslims create barriers to understanding and appreciating the value of the Islamic heritage. If aid and development workers, people working on PRTs, or those who promote health care and assist refugees, hold negative conceptions whilst working with Muslims, they not only miss all of the benefits of effectively solving problems with local traditional practices, but more seriously they face the grave danger of committing offenses and stimulating resistance to their work. On the other hand, understanding that Islam offers significant resources for Muslims to use in building peace awakens the understanding to fresh possibilities in solving problems, reducing conflicts, improving communication, and promoting human development.

Muslim conflict mediators use Islamic values, combined with local examples and traditions, to solve problems and preserve peace in a variety of ways, distinctive to each society.

Muslim conflict mediators use Islamic values, combined with local examples and traditions, to solve problems and preserve peace in a variety of ways, distinctive to each society. Conflict mediators accept great personal vulnerability as they work with men of violence. It also highlights the importance of sustained dialogue as a tool for

social stability and, when conflicts do erupt, as a strategy for supporting formal negotiations.

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ORCID iD

Jonathan K. Zartman  <https://orcid.org/0000-0002-3095-0205>

Note

1. Author's conclusion, based on conversations with officers who have served in Afghanistan, and the briefings of a Pashtu speaking public affairs officer, who worked on managing the results of civilian casualties in Afghanistan.

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Author Biography

Jonathan K. Zartman is an associate professor of international security studies in the Department of Research at Air Command and Staff College. He received his PhD in 2004 from the University of Denver’s Graduate School of International Studies. He taught at the Samarkand State Institute of Foreign Languages in Samarkand, Uzbekistan, as a Fulbright Fellow (2005–2006). He has also received a David L. Boren Fellowship for language study and research in Dushanbe, Tajikistan, at the Technological University of Tajikistan (2000–2001). He is the editor of *Conflict in the Modern Middle East: An Encyclopedia of Civil War, Revolutions, and Regime Change*. He has also written “Using Historical Islamic Sources to Promote Ethical Character.” *Journal of Islamic Thought and Civilization*, 8, No. 2 (Fall 2018). The main focus of his work promotes understanding of cultural identity in the service of building peace.